

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
JESSICA NOVA,

Plaintiff,

Index # :

Plaintiff designates New York
County as the Place of trial

The Basis of venue is:
Residence of Plaintiff

-against-

SUMMONS

THE CITY OF NEW YORK,

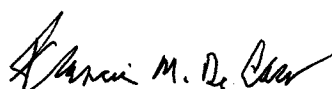
Plaintiff resides at:
1350 5th Avenue
New York, NY 10026

Defendant
-----X

To the above named Defendant:

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your answer on the Plaintiff's Attorney within twenty (20) days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or within thirty (30) days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: January 28, 2014



FRANCIS M. DECARO
Attorney for Plaintiff
881 Gerard Avenue, Suite 200
Bronx, New York 10452
(718) 293-7574

To: The City of New York
100 Church Street,
New York, NY 10007
Attn: Law Dept.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
JESSICA NOVA,

Plaintiff,

Index No.:

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK,

Defendant.
-----X

Plaintiff, complaining of the Defendant, by her attorney, FRANCIS M. DECARO, hereinafter alleges:

FIRST: Upon information and belief, that at all times hereinafter mentioned, the Defendant, THE CITY OF NEW YORK, was and still is a municipal corporation existing under and by virtue of the laws of the State of New York.

SECOND: That heretofore and prior to the commencement of this action and within ninety (90) days after the claim herein arose, the Plaintiff duly served upon the City of New York, a notice in writing duly sworn and verified, setting forth the names and addresses of claimant and her attorney, the nature of the claim herein, the time when and the place where and the manner in which said claim arose; and the injuries claimed to have been sustained herein as far as then ascertainable, that the aforesaid claim contained a clause that unless such claim was adjusted and paid within the time specified by law, that the Plaintiff would commence an action against the Defendant, THE CITY OF NEW YORK, for false arrest and imprisonment, assault, personal injuries, lost earnings, damage to reputation, emotional and mental anguish sustained by the Plaintiff.

THIRD: That at least thirty (30) days have elapsed prior to the commencement of this action since the service of the notice of claim, and adjustment or payment thereof has been neglected or refused by the City, and this action was commenced on the claim within one year and ninety days after the happening of the event upon which the claim is based.

FOURTH: That an oral examination of Plaintiff was not requested by the City of New York although Plaintiff was, and is, available for any such oral examination pursuant to the Municipal Law.

FIFTH: Upon information and belief, at all times hereinafter mentioned and prior thereto, the Defendant, THE CITY OF NEW YORK, employed as police officers, those persons described as hereinafter mentioned in this complaint who were agents, servants, and /or employees of the said Defendant, and in particular a Police Officer, whose name is unknown, but whose ID number is 911299, of the 28th Police Precinct.

SIXTH: Upon information and belief, at all times hereinafter mentioned and prior thereto, the Defendant, THE CITY OF NEW YORK, authorized and empowered the police officers to attend to their duties as police officers more specifically the Police Officer whose ID number is 911299 and thus constituted them policemen with THE CITY OF NEW YORK.

SEVENTH: Upon information and belief, all of the actions of the aforesaid police officers as hereinafter described were performed in the course and scope of their employment as police officers of the Defendant, THE CITY OF NEW YORK, and under color of their authority as police officers.

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF
OF PLAINTIFF, JESSICA NOVA, FOR ASSAULT,
AND PERSONAL INJURIES

EIGHTH: That on or about February 6, 2013, the Plaintiff was lawfully in front of 1350 Fifth Avenue, State and County of New York.

NINTH: That at said date, time and place the aforesaid police officers, as agents, servants and/or employees of THE CITY OF NEW YORK, and acting in the course and scope of their employment and under color of their authority as police officers without just cause, or provocation negligently and carelessly, and falsely assumed Plaintiff was committing, or had committed a crime. She was falsely arrested, handcuffed and falsely detained and falsely charged with possession and sale of firearms supposedly on different prior occasions to an undercover. Claimant was assaulted, brutally pushed and shoved and insulted and handcuffed behind her back. She was since been repeatedly assaulted by being brutally handcuffed behind her back, and brutally pushed and shoved causing injuries and pain and suffering and mental anguish until June 6, 2013 the day she was released from imprisonment.

TENTH: As a consequence of the assault and personal injuries, the Plaintiff was damaged.

ELEVENTH: The amount of damages exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF
OF PLAINTIFF, JESSICA NOVA, FOR
FALSE ARREST AND IMPRISONMENT

TWELFTH: Plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs of the complaint numbered "FIRST" through "TENTH", inclusive, with the same force and effect as through fully set forth at length herein.

THIRTEENTH: That the aforesaid Police Officers acting in the course and scope of their employment without just cause or provocation, willfully and maliciously assaulted and battered the Plaintiff; they grabbed her searched her and handcuffed her; force her into the police car and Precinct cell. She was kept in a cell for several hours, then taken to a holding cell in Court and then was arraigned in Court. She continued to be unlawfully deprived of her freedom and was unlawfully imprisoned until June 6, 2013.

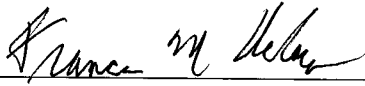
FOURTEENTH: That said false arrest and imprisonment resulted in severe mental pain and anguish to the Plaintiff. She was deprived of her freedom, suffered humiliation, scorn, and anguish, and was rendered physically, mentally ill, was prevented from attending to her usual activities, and was injured in her credit, good name and reputation in the community. She was unjustly imprisoned until June 6, 2013 when she was finally released from imprisonment.

FIFTEENTH: As a consequence of the unlawful arrest and imprisonment the Plaintiff was damaged.

SIXTEENTH: The amount of damages exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, Plaintiff Jessica Nova demands judgment on the First, and
Second, Causes of Action, together with the costs and disbursements of this action.

Dated: January 28, 2014
Bronx, New York



FRANCIS M. DE CARO
Attorney for Plaintiff
881 Gerard Avenue
Suite 200
Bronx, New York 10452
(718) 293-7574

VERIFICATION

STATE OF NEW YORK
CITY OF NEW YORK
COUNTY OF BRONX

ss.:

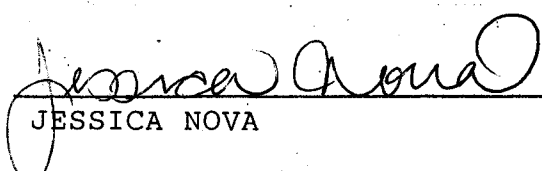
JESSICA NOVA

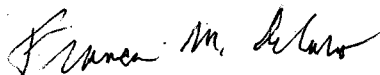
being duly sworn, deposes and says: That deponent is

the plaintiff herein: that deponent
has read the foregoing SUMMONS & COMPLAINT and
knows the contents thereof; that the same is true to deponent's own
knowledge, except as to the matters therein stated to be alleged on infor-
mation and belief, and that as to those matters deponent believes it
to be true

Sworn to before me this

29th day of January 2014.


JESSICA NOVA



FRANCIS M. DE CARO
NOTARY PUBLIC, STATE OF NEW YORK
NO. 02DE0893505
QUALIFIED IN WESTCHESTER COUNTY
COMMISSION EXPIRES 10/31/2017

Index No.

Year

RJI No.

Hon.

SUPREME COURT OF THE STATE OF NEW YORK COUNTY OF NEW YORK

JESSICA NOVA,

Plaintiff,

-against-

THE CITY OF NEW YORK

Defendant.

SUMMONS AND VERIFIED COMPLAINT

FRANCIS M. DE CARO

Attorney for **Plaintiff**

Office and Post Office Address, Telephone

881 Gerard Avenue

Suite 200

BRONX, NEW YORK 10452

(718) 293-7574

To

Signature (Rule 130-1.1-a)



Print name beneath

FRANCIS M. DE CARO

Attorney(s) for

Service of a copy of the within

is hereby admitted.

Dated,

Attorney(s) for

Please take notice

☐ NOTICE OF ENTRY

that the within is a (certified) true copy of a
duly entered in the office of the clerk of the within named court on

☐ NOTICE OF SETTLEMENT

that an order
settlement to the HON.
of the within named court, at
on

of which the within is a true copy will be presented for
one of the judges

at

M

Dated,

Yours, etc.

FRANCIS M. DE CARO

Attorney for **Plaintiff**

Office and Post Office Address

881 Gerard Avenue

Suite 200

BRONX, NEW YORK 10452

To

Attorney(s) for